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May 17, 2016

VIA E-MAIL AND FIRST CLASS MAIL

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Re: URGENT ATTENTION REQUESTED
Request for Suspension of Maine Judicial Branch Policy Prohibiting Public
Access to Closed Criminal Case Files

Dear Mr. Glessner and Ms. Lynch:

I respectfully request, on behalf of the entities listed below, the immediate suspension of a new Judicial Branch policy that all judicial records of dismissed criminal cases, except those involving a plea deal, become automatically confidential 30 days after dismissal. This letter is on behalf of the following in alphabetical order: American Civil Liberties Union of Maine Foundation; Associated Press; Bangor Daily News; Hearst Television Inc.; Maine Association of Broadcasters; Maine Center for Public Interest Reporting; Maine Freedom of Information Coalition; Maine Press Association; Maine Pro Chapter of the Society of Professional Journalists; National Freedom of Information Coalition; New England First Amendment Coalition; New England Newspaper and Press Association; Portland Press Herald/Maine Sunday Telegram; and Sun Journal.

What does this Judicial Branch policy change mean in practice? A person may be charged, indicted, jailed, and go to trial, but then have all charges dismissed. All of these proceedings would happen in open court, and records of them would be contemporaneously available to the public. The proceeding may be reported by the news media. And then 30 days after charges are dismissed, the court's files are permanently coded as "sealed" by Judicial Branch administrative offices and become off limits to the public. This administrative seal happens without any court order or notice to the public. Even the defendant charged in the case

is, apparently, barred from accessing her own court file if she asks for it 30 days after charges are dismissed.

This blanket confidentiality violates the First Amendment to the United States Constitution as interpreted by a U.S. Court of Appeals decision directly on point, is not mandated by any Maine statute, violates a Judicial Branch Administrative Policy, and is contrary to Maine's longstanding common law tradition of public access to criminal case records. In addition, this policy change has been made without adequate public notice or opportunity for input by stakeholders.

A. The Judicial Branch Makes Closed Criminal Case Files Secret in Maine.

The Sun Journal recently discovered, in the course of reporting on the status of a manslaughter prosecution in Oxford County, that Judicial Branch policy concerning access to closed criminal case files had changed. On June 29, 2014, Steven Thomas crashed his car into a motorcycle being driven by a New Hampshire resident in Newry. The motorcyclist was killed. Thomas' blood alcohol content was reported to be over the legal limit. He was charged with manslaughter and indicted in December. The Sun Journal reported on the accident and on the indictment, and attended a plea hearing in January 2015. Last July, the paper reported that the case had been continued after defense counsel accused prosecutors of withholding evidence. The Sun Journal circled back to this case on April 27, 2016 for a follow-up story, but the Oxford County Superior Court clerk's office told its reporter that no information was available in the file. The clerk would not even acknowledge the existence of the file. The clerk said, "we can't release any information to the public."

On April 28, Judy Meyer, Executive Editor of the Sun Journal, reached out to Mary Ann Lynch, the media liaison with the Judicial Branch, to ask for assistance. Ms. Meyer was astonished at Ms. Lynch's response: "When a case is dismissed it becomes non-public data 30 days after the event, in this case, the dismissal by the court, under the Criminal History Records Information Act 16 M.R.S. 703(2) and 705 and clerks are not allowed by statute to release this information under [the Act] and JB-05-20." In other words, there had been no motion to seal or impound the file in the Thomas case. Instead, the case file had become secret automatically as a result of a new blanket administrative policy of confidentiality, applicable not just to the Thomas file, but to *all* records of dismissed criminal proceedings in Maine courts once 30 days have passed after dismissal. Ms. Lynch later clarified that this policy does not apply to cases ending in plea agreements.

After checking the Act and the referenced Administrative Order, JB-05-20, Ms. Meyer responded on May 4 to Ms. Lynch by explaining that Section 708(3) of the Criminal History Records Information Act says that the Act does not apply to records of public judicial proceedings in any Maine court. Records of public judicial proceedings would include the Thomas indictment, which was part of a judicial proceeding, and any motion to dismiss and any order granting dismissal. These records are public unless a court orders otherwise. The Sun

Journal has reported on hundreds of dismissals, often 30 days after the dismissal date, and had never before encountered any barrier to accessing relevant court files.

On May 10, Ms. Lynch provided a longer response. She wrote that the Act applies notwithstanding Section 708(3) of the Act and, as a result, all case files of dismissed criminal charges are confidential except during the first 30 days after the case was dismissed. She explained that the Judicial Branch had made a “conscious decision” to take this approach. If so, the policy was not adequately noticed to stakeholders, such as the Legislature’s Right-to-Know Advisory Committee and the Judicial Branch’s Committee on Media and the Courts. Nor was this change in policy known to the news organizations and public interest groups on whose behalf I write this letter.

B. The New Policy Violates First Amendment Right of Access to Judicial Records.

The federal courts of appeal, including the First Circuit,¹ have uniformly held that the First Amendment guarantees to the public a right of access to records of criminal proceedings. *See, e.g., Globe Newspaper Co. v. Pokaski*, 868 F.2d 497, 502-505 (1st Cir. 1989) (dismissed criminal case files); *Associated Press v. United States Dist. Ct.*, 705 F.2d 1143, 1145 (9th Cir. 1983) (documents filed in pretrial proceedings); *In re. Washington Post Co.*, 807 F.2d 383, 390 (4th Cir. 1986) (documents filed in connection with plea and sentencing hearings); *Matter of the New York Times Co.*, 828 F.2d 110, 114 (2d Cir. 1987) (documents filed in connection with pretrial suppression hearings); *United States v. Peters*, 754 F.2d 753, 763 (7th Cir. 1985) (trial exhibits); *United States v. Smith*, 76 F.2d 1104, 1111 (3d Cir. 1985) (bill of particulars); *United States v. Valenti*, 987 F.2d 708, 712 (11th Cir. 1993) (docket sheets); *Washington Post v. Robinson*, 935 F.2d 282, 287-88 (D.C.Cir. 1991) (stating that “first amendment guarantees the press and the public a general right of access to court proceedings and court documents unless there are compelling reasons demonstrating why it cannot be observed,” and holding that the right of public access applies to plea agreements).

According to the First Circuit, “The basis for this right is that without access to documents the public often would not have a ‘full understanding’ of the proceeding and therefore would not always be in a position to serve as an effective check on the system.” *Pokaski*, 868 F.2d at 502. “Courts have long recognized that public monitoring of the judicial system fosters the important values of quality, honesty and respect for our legal system.” *In re Providence Journal*, 293 F.3d 1, 9 (1st Cir. 2002) (quotation marks omitted).

This First Amendment right of access to records of criminal proceedings extends to closed criminal cases ending in acquittals, findings of no probable cause, *nolle prosequi*, or dismissals. *Pokaski*, 868 F.2d at 502-505. Judge Coffin, writing for the First Circuit, rejected the argument that because case files and proceedings “were previously open,” that past access

¹ The Law Court will generally follow First Circuit decisions on federal law “so far as reasonably possible” in the interests of “harmonious federal-state relationships.” *Littlefield v. Dept. of Human Servs.*, 480 A.2d 731, 737 (Me. 1984).

was a sufficient opportunity for the public to obtain information. *Id.* “If the press is to fulfill its function of surrogate [for members of the public unable to observe criminal proceedings firsthand], it surely cannot be restricted to report on only those judicial proceedings that it has sufficient personnel to cover contemporaneously.” *Id.* at 504.

The First Circuit held in *Pokaski* that a Massachusetts statute blocking access to records of closed criminal cases violated the First Amendment. “We conclude that a blanket restriction on access to the records of cases ending in an acquittal, a dismissal, a *nolle prosequi*, or a finding of no probable cause, is unconstitutional, even if access is not denied permanently.” *Id.* at 510. The *Pokaski* decision is on all fours with the situation here. The Judicial Branch’s new policy of imposing an automatic seal on all dismissed criminal cases after 30 days cannot be reconciled with the First Amendment.

C. The New Policy is Contrary to Common Law Right of Access to Judicial Records.

The Judicial Branch has a longstanding tradition of affording public access to records of criminal proceedings. Although motions to seal or impound have on occasion been made in particular cases, Maine has never had a rule of blanket confidentiality for all records of dismissed criminal proceedings. This common law right of access to both criminal and civil judicial records is well established in Maine and in all other state and federal courts in this country. *See Maine Auto Dealers Assn. v. Tierney*, 425 A.2d 187, 189 n.3 (Me. 1981) (citation omitted) (“Although under appropriate circumstances a court may impound records when publication would impede the administration of justice, the power of impoundment should be exercised with extreme care and only upon the clearest showing of necessity.”); *Nixon v. Warner Communications, Inc.*, 435 U.S. 589, 597 (1978) (“courts of this country recognize a general right to inspect and copy public records and documents, including judicial records and documents”).

The Judicial Branch’s new policy deviates from common law rights of access to criminal case files in Maine.

D. The New Policy Is at Odds with the Broad Access to Court Records under the Judicial Branch’s “Public Information and Confidentiality” Administrative Order.

The Court’s administrative order regarding public access to court records, “Public Information and Confidentiality,” JB-05-20, contains a statement of policy favoring meaningful public access to judicial records. The portion of the Public Information and Confidentiality order relevant here, Part III, ¶ A, says that information and records in case files, dockets, indices, lists or schedules maintained by or at the courts “are generally public . . . unless the information or a portion of it is confidential as provided in Part II, ¶ H.” Nothing in Part II, ¶ H suggests that blanket confidentiality applies to case files of dismissed criminal proceedings after some period of time. Just the opposite, Part II, ¶ H, 2 provides that judges may on a case-by-case basis order

particular records or files sealed or impounded. If a judge seals information about a case the order must make “the scope of the impoundment order clear to the clerk’s office.” *Id.* n. 3.

The Public Information and Confidentiality order also defines as “confidential” information made so by statute. No statute requires the blanket sealing of all closed criminal case files. The Criminal History Record Information Act, referenced by Ms. Lynch as the basis for denying access, “does *not* apply to criminal history record information contained in . . . [r]ecords of public judicial proceedings . . . [r]etained at or by the District Court, Superior Court or Supreme Judicial Court.”² 16 M.R.S. § 708(3)(A) (emphasis added). Instead, “Public access to and dissemination of such records for inspection and copying are as provided by rule or administrative order of the Supreme Judicial Court[.]” *Id.*; *see also* 16 M.R.S. § 709(6) (same). By leaving the regulation of judicial records to the Judicial Branch, the Legislature avoided potential separation of powers conflicts over which branch of government has authority to regulate access to judicial records.

The closure of all dismissed criminal cases 30 days after dismissal is a material departure from past practice. Had that change been intended some obvious reference to it would have been expected on the face of the Public Information and Confidentiality order. The absence of such a reference suggests that no substantial change from prior practice was intended. *Cf. Whitman v. American Trucking Assn.*, 531 U.S. 457, 468 (2001) (“Congress ... does not alter the fundamental details of a regulatory scheme in vague terms or ancillary provisions – it does not, one might say, hide elephants in mouseholes.”).

The recent change in Judicial Branch policy cannot be explained by any recent changes to the Public Information and Confidentiality order or Maine statutes. The most recent versions of the Public Information and Confidentiality order (2014 and 2009) contained language similar to what the current order contains. Likewise, although the Criminal History Record Information Act was recently re-codified, the provision exempting judicial records from the Act did not change. The legislative history of the Act does not indicate any intent to alter public access to court records or to adopt a major substantive change to access to court records.

E. The New Policy Is Against the Public Interest.

Transparency and accountability are core values of our criminal justice system. A policy of blanket and automatic secrecy as applied to closed criminal proceedings cannot be squared with those values. Records of criminal court cases, even 30 days after dismissal, provide important information on the functioning of the criminal justice system. The news media cannot attend every criminal proceeding in person or contemporaneously ask for every record. To

² The Criminal History Record Information Act does apply to criminal history record information contained in non-judicial records, such as law enforcement records generated by the Office of Judicial Marshals. Judicial Marshals are sworn law enforcement officers and can and often do make arrests at the direction of a Judge or Justice and as it becomes necessary to maintain order in all Maine courts. *See* 4 M.R.S. § 17(15). Their records are not at issue.

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perform their watchdog role, it is often necessary for journalists to rely on court records after a case has been dismissed.

As best I can tell, there is no claim by the Judicial Branch or anyone else that a compelling basis exists to seal all judicial records of a criminal case merely because the case ended in dismissal. Nor has anyone claimed that doing so is narrowly tailored to serve such an interest. The practical effect of the new Judicial Branch policy would be to allow the public to know that a person has been arrested and detained – because records of people detained after arrest are public under 16 M.R.S. § 706 – but if the charges end up being dismissed, to prevent the public from learning what happened to that person after the arrest.

Many news organizations report arrest logs or “police blotters,” but would, under the new policy, be prevented from updating that reporting – as is often requested by people who have been arrested and discovered that Google searches turn up that fact alone. When newsrooms are contacted about archived arrest logs and asked to update the log to show a dismissal, how is the dismissal to be confirmed without access to court records? As Judy Meyer wrote to Ms. Lynch, the Judicial Branch policy is “like shoving the genie back in the bottle and hoping no one noticed it ever got out.”

Conclusion

The news entities and public interest organizations joining this letter respectfully request that the Judicial Branch immediately rescind its policy barring access to criminal case files 30 days after dismissal, communicate to all clerks that access to files of dismissed criminal cases should be restored, and confirm that the Judicial Branch will not treat records of public judicial proceedings as subject to the Criminal History Record Information Act. In light of the First Amendment and the substantial public interest at stake, I request a response as soon as possible but not later than 5:00 p.m. on Monday, May 23, 2016.

If the Judicial Branch believes that the recent change in policy prohibiting access to dismissed cases after 30 days is required by Maine statute, the policy should at least be suspended pending public notice of the change, an opportunity for input from stakeholders, and a thorough written legal analysis.

I would be pleased to further discuss these matters with you at your convenience. Thank you for considering our urgent request.

Very truly yours,



Sigmund D. Schutz

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cc: American Civil Liberties Union of Maine Foundation
Associated Press
Bangor Daily News
Hearst Television Inc.
Maine Association of Broadcasters
Maine Center for Public Interest Reporting
Maine Freedom of Information Coalition
Maine Press Association
Maine Pro Chapter of the Society of Professional Journalists
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